

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2024CUWT023824: JOSE GALVAN vs S&P GLOBAL, et al.

09/09/2026 in Department 21

Motion to Seal Plaintiff's Exhibits

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court's tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

- (1) Defendant Market Scan Information Systems, Inc. Motion to Strike Plaintiff's Notice of Errata.
- (2) Defendants' S&P Global and Market Scan Information Systems, Inc. ("Defendants") Motion to Seal Plaintiff's Exhibits in Support of Opposition to Defendants' Motions for Summary Judgment.

Tentative Ruling:

Defendant Market Scan Information Systems, Inc. Motion to Strike Plaintiff's Notice of Errata is DENIED.

Defendants' S&P Global and Market Scan Information Systems, Inc. ("Defendants") Motion to Seal Plaintiff's Exhibits in Support of Oppositions to Defendants' Motions for Summary Judgment is GRANTED in PART.

Defendants' motion to seal is GRANTED as to Exhibits 9, 10, 12, 13, 16, and 23. The unredacted versions of Exhibits 9, 10, 12, 13, 16, and 23, filed in support of Plaintiff's Opposition to Defendants' motion for summary judgment shall be filed under seal for purposes of the motions for summary judgment only. The redacted versions filed by Plaintiff in Opposition to the motions for summary judgment shall remain in the public file.

As to Exhibit 22, Defendant's motion to seal is GRANTED in PART, only as to information describing how the company acquired "automotive payment centric" data from third-parties without their knowledge.

The unredacted Exhibit 22 shall remain lodged under seal for purposes of the motion for summary judgement/summary adjudication only. Plaintiff is to file a Declaration with the court attaching the redacted version of Exhibit 22 in accordance with this ruling, within five (5) court days. The redacted version attached to the Declaration, once filed, shall be placed in the public file.

Counsel for Defendant shall give notice within two (2) court days.

Discussion:

A. Motion to Strike Notice of Errata – Denied

There is no enactment (statute, rule of court, etc) in California establishing or recognizing a party's right to file a "notice of errata" to make changes to pleadings or motions. The only recognized "notice of errata" in California trial court jurisprudence is with regard to deposition transcripts, to wit: "the deponent may change the form or the substance of the answer to a question." (CCP §2025.520(b).) Changes are typically made on an errata sheet. Errata sheets may typically be used to fix typos, misstatements and non-substantive mistakes, but cannot be used to make substantive or contradictory changes unless the change relates to a transcription error. (See, e.g., *Hambleton Bros. Lumber Co. v. Balkin Enters., Inc.*, 397 F.3d 1217, 1225-1226 (9th Cir.2005); *Azco Biotech Inc. v. Qiagen, N.V.*, WL350567 at *4–5 (S.D. Cal. 2015).) Despite the absence of statutory authority for "correcting" pleadings and motions via "notice errata," the practice has become rather ubiquitous. (See *Flores v. Nature's Best Distribution, LLC* (2016) 7 Cal.App.5th 1, 6.) Taking from the errata sheet framework, it is generally understood that a "notice of errata" cannot be used to circumvent timing requirements or to make substantive changes to a pleading already on file. (See, e.g., *Falahati v. Kondo* (2005) 127 Cal.App.4th 823, 834.)

Here, plaintiff attempted to file via "notice of errata" an entire opposition to a dispositive motion well after the statutory deadline for filing opposition. According to plaintiff, there are two pending motions for summary judgment, and an in-office clerical error resulted in only one of two identical oppositions actually being filed. As set forth in detail by plaintiff's counsel:

"My office prepared oppositions to both motions. The two opposition sets were prepared in parallel from common documents and presented the same material facts and the same legal theories. The failure to submit the opposition to Market Scan's motion on May 26, 2026, was my inadvertent error, and mine alone. I electronically filed and served the opposition to S&P's motion, and I intended to transmit the companion opposition to Market Scan's motion the same day. I did not complete the second transmission and believed at the time that both oppositions had been filed. At no time did I decide to leave Market Scan's motion unopposed; the omission was wholly inadvertent. I was not aware that the opposition to Market Scan's motion had not been submitted until June 4, 2026, when Market Scan filed and served its Notice of Non-Opposition. Upon discovering the error, I acted immediately."

Defendant Market Scan is seeking an order that the late filed pleading should be stricken, leaving its motion for summary judgment unopposed.

“A party cannot defeat summary judgment with late-filed papers unless the court permits the late papers in the interests of justice.” (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.) Trial courts retain broad discretion under CRC 3.1300(d) to refuse to consider papers served and filed beyond enacted deadlines without a showing of good cause (*Hobson v. Raychem Corp.* (1999) 73 Cal.App.4th 614, 623), and a “notice of errata” which seeks to avoid judicial scrutiny is a misuse of the process. However, had plaintiff’s counsel proceeded by way of ex parte application seeking permission to late-file, and presented the same factual basis, that motion would have been granted. While permission, and not a “notice of errata,” would have been the proper procedure, trial courts are not to exalt form over substance. The hearing on the motion was continued so defense counsel could work on a reply, and in fact a substantive reply has already been filed. The motion is fully briefed, so no prejudice has come to defendant.

The motion to strike the notice of errata is DENIED.

B. Motion to Seal Portions of Plaintiff’s Exhibits 9, 10, 12, 13, 16, 22 and 23 – Granted in Part

Defendants seek to seal documents which allegedly contain “confidential information regarding S&P’s clients, including business strategies, processes and practices, customer contact information, revenue projections, revenue histories, sales pitches, and strategies regarding division of labor among the S&P Mobility sales team.” (Motion at p.3, lines 7-10.) The seal redactions sought are reportedly the same as those previously approved by this Court in the earlier motion to seal filed by the defense.

Plaintiff does not oppose the proposed redactions and seal orders for exhibits 9, 10, 12, 13, 16 and 23. These were substantively dealt with in the June 15, 2026, ruling, and as such the order here should be to simply conform all submissions to that order. As to Exhibit 16, Plaintiff accepts Defendant’s proposed redactions and agrees these redactions are narrowly tailored consistent with this Court’s prior sealing order.

What remains of this motion is the challenge to exhibit 22, which contains excerpts from the disclosure schedules to the Market Scan purchase agreement – namely information relating to taxes, real property, and intellectual property. These were part of S&P’s acquisition of Market Scan, and appear to have limited relevance in the case. The publicity of these records has not previously been before this Court.

The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. Substantive courtroom proceedings in ordinary civil cases, and the transcripts and records pertaining to these proceedings, are presumptively open. (*NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1208–1209.) This strong presumption in favor of openness exists because “the public has an interest, in all civil cases, in observing and assessing the performance of its public judicial system.” (*In re Marriage of Nicholas* (2010) 186 Cal.App.4th 1566, 1575.) Open court records safeguard against unbridled judicial power, thereby fostering community respect for the

rule of law. (*Id.*) “If public court business is conducted in private, it becomes impossible to expose corruption, incompetence, inefficiency, prejudice, and favoritism. For this reason, traditional Anglo–American jurisprudence distrusts secrecy in judicial proceedings and favors a policy of maximum public access to proceedings and records of judicial tribunals.” (*Estate of Hearst* (1977) 67 Cal.App.3d 777, 784.)

Before a record may be sealed from public view, the court must expressly find facts that establish the following: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (3) the proposed sealing is narrowly tailored; and (4) no less restrictive means exist to achieve the overriding interest. (CRC 2.550(d).) The “sealed records rule” (effective 2001) codifies the balancing test articulated by the Supreme Court in *NBC Subsidiary*. It provides that documents used as a basis of adjudication cannot be withheld from the public under the First Amendment without first obtaining a court order to file under seal, and that the “court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (CRC 2.551(a).)

As an initial observation, a blanket order sealing everything is generally improper. (*Mercury Interactive Corp. v. Klein* (2007) 158 Cal.App.4th 60, 88-89.) Instead, the moving party has the burden of directing the court to specific portions of particular documents subject to the request. (CRC 2.550(e).) Second, *post hoc* motions to seal are subject to the rules of waiver and invited error. (See *Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal.App.4th 588, 599-600.)

Defendants first wish to seal from public viewing the names of jurisdictions in which Market Scan “has not, for any of the periods in which the Company had a filing obligation, filed income tax returns, sales tax returns or gross receipts tax returns.” According to defendants, disclosure of these jurisdictions where tax returns were not filed permits a competitor to falsely claim that the company is skirting its tax obligations. The information is not a trade secret, nor is it even timely given that Market Scan was absorbed (and absolved of tax filing burdens) back in 2023. Nevertheless, as defendants point out, “the true purpose of Plaintiff’s Opposition to redacting this information is not because this list of jurisdictions in which Market Scan may have owed certain tax obligations is somehow relevant to Plaintiff’s claims. Plaintiff’s Opposition makes readily obvious that his true intended purpose is to utilize this information against Defendants.” (Reply Brf 5:7-11.) Market Scan is no longer in business, so any aggression from a “competitor” is illusory. There is no legal basis for sealing these records.

Defendants next seek to seal the name of the landlords for properties the company is leasing. There is no stated prejudice or harm to defendants if this information were get out, and in fact “a landlord’s identity is by its nature known to the landlord, disclosed in the leasing transaction, and ascertainable from county assessor and recorder records for the very addresses Defendants leave public.” (Opp Brf 7:8-11.) The name of the landlord is not a trade secret, and hardly worthy of special protection. Defendants contend that they have “special relationships” with landlords, and those persons may not be the business owners (which are public). It is hard to imagine how anyone would want to misuse the identity of landlords in an effort to gain an advantage over and against S&P Global. The lease agreements control the relationship, and outside interference

with those existing contracts could itself be actionable, so it seems competitors are unlikely to intervene. The Court finds there is no legal basis for sealing these records.

Finally, defendants seek to seal and redact information describing how the company acquired "automotive payment centric" data from third-parties without their knowledge. While the technique used to acquire the information that lies at the heart of their business model is arguably a technique or process protecting by trade secret (see Civil Code §3426.1(d)), plaintiff contends that this information goes to the very heart of his retaliation and whistleblower theories. This Court previously eliminated those causes of action, which remain the subject of a motion for reconsideration. Even if those issues return to the case, the "technique" used by defendants to allegedly cheat in business is very much a trade secret, entitled to protection from public view. If it should come to pass that this technique violated the law, the right to keep it from public view would be lost. Courts are under a duty to continually monitor sealing orders, and to unseal when there are changed circumstances. *Copley Press, Inc. v. Superior Court* (1998) 63 Cal.App.4th 367, 374. Thus, unless and until this trade secret is deemed to be illegal, it should be sealed. Motion to seal these portions should be granted.

The unredacted Exhibit 22 shall remain lodged under seal for purposes of the motion for summary judgement/summary adjudication only. Plaintiff is to file a Declaration with the court attaching the redacted version of Exhibit 22 in accordance with this ruling, within five (5) court days. The redacted version attached to this Declaration shall be placed in the public file.